

## 26SMCV02903 26SMCV02903

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-07-31

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Case Number: 26SMCV02903 Hearing Date: July 31, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

KEISHA HENDERSON,

Plaintiff,

v.

WESTFIELD PROPERTY MANAGEMENT, LLC , et al.,

Defendants.

Case No.: 26SMCV02903

Hearing Date: July 31, 2026

[TENTATIVE] order RE:

defendant's motion to strike

Plaintiff's punitive damages

claim

## BACKGROUND

This is a slip and fall case. Plaintiff alleges that she slipped and fell in the common area of a shopping center owned and/or managed by Defendants. Plaintiff claims she slipped on vomit which the mall security spotted on surveillance footage, but mall personnel had failed to timely clean or cordon off the area. As a result of her fall, Plaintiff claims she sustained injuries to her wrist, shoulder, hip, leg, thigh, and knee.

The operative complaint alleges two claims for negligence and premises liability. Plaintiff seeks compensatory damages including wage loss, hospital and medical expenses, general damage and loss of earning capacity. The complaint also seeks punitive damages.

This hearing is on Defendant Culver City Mall, LLC's motion to strike Plaintiff's claim for punitive damages. Moving Defendant argues that Plaintiff has not sufficiently alleged malice, oppression or fraud to support a claim for punitive damages as this is a simple slip and fall case without any evidence that Moving Defendant intended to harm Plaintiff. Moving Defendant further argues that there are no facts alleged showing that the alleged wrongdoing was authorized or ratified by its officer, director or managing agent. There was no opposition filed.

## MEET AND CONFER

Code Civ. Proc. § 435.5 requires that before the filing of a motion to strike, the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc. § 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing its meet and confer efforts. (Code Civ. Proc. § 435.5(a)(3).) Defendant submits the Declaration of Denise Thompson who attests that she attempted to meet and confer by telephone with Plaintiff's counsel but counsel did not respond to her multiple requests to do so. The Court concludes that Moving Defendant has met its meet and confer obligations.

## LEGAL STANDARD

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

## DISCUSSION

Defendant moves to strike Plaintiff's claim for punitive damages. Defendant argues that Plaintiff has not made any allegations that would support a finding of malice, oppression or fraud. The Court agrees.

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be

circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (citations omitted).)

Punitive damages may only be sought where there is clear and convincing evidence that the defendant has been guilty of malice, oppression or fraud:

(c)(1) “Malice” means conduct which is intended to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(c)(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(c)(3) “Fraud” means an intentional misrepresentation, deceit or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise

causing injury.

(Civ. Code §3294.)

Section 3294 was amended in 1987 to increase the burden of proof required in order to allege a punitive-damages claim as well as to raise the level of misconduct necessary for an award of punitive damages. The California Supreme Court has ruled that the insertion of the word “despicable” in section 3294 created a “new substantive limitation on punitive damage awards.” (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) “Despicable” means conduct that is “so vile, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (Scott v. Phoenix Schools, Inc. (2009) 175 Cal.App.4th 702, 715.) “Such conduct has been described as having the character of outrage frequently associated with [a] crime.” (Id.)

Punitive damages are disfavored by public policy and are allowed only under the most extreme circumstances and in the “clearest of cases.” (Woolstrum v. Mailloux (1983) 141 Cal.App.3d Supp. 1, 9.) “To contain the generosity and emotionality of juries, appellate courts have set the threshold high in defining situations in which punitive damages can be given. Conduct which may be characterized as unreasonable, negligent, grossly negligent or reckless does not satisfy the highly culpable state of mind warranting punitive damages. Conduct which warrants punitive damages must be of such severity or shocking character [as] warrants the same treatment as accorded willful misconduct – conduct in which defendant intends to cause harm.” (Id. at 10 (internal quotations and citations omitted).)

Here, Plaintiff has alleged a simple slip and fall case. Plaintiff has not claimed that Moving Defendant intended to harm her. Absent a specific intent to injure Plaintiff (of which there is none alleged), both malice and oppression require despicable conduct. (College Hospital v. Superior Court (1994) 8 Cal.4th 704, 713, 725.) “Despicable” means conduct that is “so vile, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (Scott, 175 Cal.App.4th at 715.) “Such conduct has been described as having the character of outrage frequently associated with [a] crime.” (Id.) That Moving Defendant failed to clean up vomit, even if observed by its mall security, does not rise to the level of conduct that is so shocking and severe that it warrants punitive damages.

Further, Moving Defendant is a corporate defendant. Civil Code section 3294, subdivision (b), imposes specific pleading requirements before punitive damages may be sought against a corporate employer based on employee conduct. Plaintiff must plead facts showing authorization, ratification, or advance knowledge of unfitness by an officer, director, or managing agent. (Civ. Code, § 3294, subd. (b).) The Complaint pleads none of these facts. Accordingly, the Court grants the motion to strike.

## CONCLUSION

For the foregoing reasons, the Court GRANTS Defendant's motion to strike without leave to amend. As Plaintiff has not filed an opposition, she has not shown that the defects addressed in this Order can be cured by an amendment.

IT IS SO ORDERED.

DATED: July 31, 2026 \_\_\_\_\_

Edward B. Moreton, Jr.

Judge of the Superior Court